

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 07/15/2026

Court Room Rules and Notices

If the tentative rulings below are for a past date, please try the following to force a refresh of this page:

For a Windows-based computer, press "Cntrl" + "Shift" + "R" at the same time.

For an Apple computer, press "Cmd" + "Shift" + "R" at the same time.

#	Case Name	Tentative
1	Katz – Probate (30-2022-01251727)	
2	Baldauf – Minor’s Compromise (2026-01575634)	Motion to File Under Seal Petitioner Robert Baldauf’s Motion to Seal Documents (ROA 3) is GRANTED. “Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) Records may be sealed only if the court expressly finds facts that establish: “(1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d).) The party seeking to seal the documents has the burden of proving such facts. (See <i>H.B. Fuller Company v. Doe</i> (2007) 151 Cal.App.4th 879, 894–895.) Here, Petitioners seek to seal the unredacted versions of: (1) Petition for Expedited Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person

		with a Disability (ROA 7); (2) Ex Parte Application for Appointment of Guardian ad Litem—Civil and Family Law (ROAs 17 & 20); (3) Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (ROA 8); and (4) Ex Parte Order Appointing Guardian ad Litem—Civil and Family Law (ROAs 18 & 24). The admissible evidence before the court is sufficient to establish that there is an overriding interest that overcomes the right of public access to the unredacted versions of those documents. The admissible evidence is also sufficient to establish a substantial probability that a failure to seal the redacted portions will prejudice that overriding interest. That proposed sealing is narrowly tailored, and no less restrictive means exists to achieve the overriding interests other than sealing the documents. The motion is GRANTED and the unredacted documents will be sealed. Petitioner is directed to give notice.
3	Smith – Trust (2023-01355718)	Motion to Compel; Motion for Order Petitioner Brian Alexander Smith’s Motion for Order Permitting Alternate Service and Electronic Service (ROA 569) is DENIED. Petitioner Brian Alexander Smith’s Motion to Compel Compliance with Deposition Subpoena for Production of Business Records [from Fay & Lawler] (ROA 556) is DENIED. <u>Motion for Order Permitting Alternative Service.</u> By his motion, Petitioner seeks an order permitting alternate service on respondent Lou Ann Kelly by email and permitting electronic service on all counsel of record. He asserts he has not been able to serve Lou Ann Kelly “by standard methods despite reasonable diligence” and that printing and mailing numerous filings has imposed a financial burden. Petitioner does not specifically identify the documents he would like to be able to serve by email or other alternate means on Lou Ann Kelly and he does not identify the documents he would like to be able to serve by email or other alternate means on the remaining parties. While the court might have authority to allow for email or another alternate method of serving certain